

24PR00690 Estate of Keith Norman-Dean Spittler

County: santa-barbara

Division: Decedent's Estate

Hearing date: 2026-03-25

Motion: "Status Report and Motion for Exclusion of Heirs"

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Tentative Ruling: Estate of Keith Norman-Dean Spittler

Case Number

24PR00690

Case Type

Decedent's Estate

Hearing Date / Time

Wed, 03/25/2026 - 09:30

Nature of Proceedings

"Status Report and Motion for Exclusion of Heirs"

Tentative Ruling

Probate Notes:

Appearances required.

The following is provided for the Court to address at the hearing:

Gary S. Spittler petitioned to be appointed Personal Representative of the Estate of Keith Norman-Dean Spittler by filing a Petition for Letters of Administration on December 10, 2025. Within that petition, Gary S. Spittler claimed to be the only heir of the estate, which is apparent from his allegations at paragraph 5 that decedent had a natural or adopted child and no issue of a pre-deceased child (Pet. at ¶5a(5) and (8)), and the allegation at paragraph 8 listing only himself as the "all persons named or checked in items 2, 5, 6, and 7" of the petition. This statement was made under the penalty of perjury, indicated by the verification at the end of the petition on page 4.

Contrary to Gary S. Spittler's claim that he was the only heir of the estate, the Court noted that Gary S. Spittler alleged at paragraph 5 of the Petition for Letters that Decedent had a predeceased spouse, but did not list that predeceased spouse in paragraph 8, nor give her date of death. A supplement was required to be filed so that any further information about the decedent's pre-deceased spouse could be submitted. That Supplement was filed on February 3, 2025, then amended on February 10, 2025.

In that supplement, Gary S. Spittler put forth new allegations that his mother divorced his father (i.e. Decedent) in "1963-64," and now also alleged that he had an elder brother, Thomas Spittler, who died in 2019 and left three known heirs. These new allegations that contradict Gary S. Spittler's original allegations (that Decedent had only one heir) could constitute perjury if Gary S. Spittler knew of the existence of his brother's children.[1]

Despite the potentially perjurious allegations, the Court appointed Gary S. Spittler the Personal Representative on February 26, 2026.

As a result of the supplement, the Court now knows that Keith Norman-Dean Spittler (hereafter "Decedent") died on November 24, 2024. During his lifetime, Decedent had two children: Gary S. Spittler and Thomas Spittler. Thomas Spittler pre-deceased Decedent on January 4, 2019. Thomas Spittler left three known heirs: Tracy L. Spittler, Amber S. Spittler, and Michael T. Spittler.

Gary S. Spittler now comes before the court with a filing that, at minimum, is described as a confusing "status report" with a random and vague request for relief that this Court cannot grant.

Titled "Status Report and Motion for Exclusion of Heirs From Distribution of Estate And Sale Proceeds," this filing not only informs the court of troubles selling an item of estate property (a mobile home), but makes a vague and statutorily unsupported request to: "obtain Court approval to exclude Amber Sky Spittler, Ogden Utah from the subject sale transaction and the distribution of the subject Estate" (St. Rep. at ¶1)...and "deem her silence as an estoppel and to allow the Estate mobile home transaction to proceed as an equitable remedy" (Id. at ¶9).

Not only is there no need for the Court to make any such order due to the fact that Gary S. Spittler has full authority to sell the mobile home under the Independent Administration of Estates Act (unless objection is received), but there was citation to ZERO statutory authority or caselaw in the "status report," no proper service on the mandatory Judicial Council form, and the filing does not even include a prayer for relief. Thus, the filing, despite its haphazard label, cannot even be treated as a procedurally proper status report (i.e. Report of Status of Administration), let alone a pleading or motion of any kind.

Most non-civil "motions" authorized by the Probate Code operate practically like a pleading, and are even cross referred to as petitions. (See e.g. Prob. Code, §§ 2593, 2654, 8481, 12202, etc.) Any other motions in Probate Court are rare, are limited, and are usually only appropriate when a civil motion governed by the Code of Civil Procedure fits squarely into relief that the Probate Court has authority to grant, is referenced by the Probate Code as available within Probate Code proceedings, or is one of the few non-civil motions authorized by the Probate Code that are not within the Court's authority to bring its own motion for the relevant relief. (See e.g. Prob. Code, §§ 552, 801, 2239.)

Unless a separate procedure is outlined in the Probate Code sections that authorize the motion (Prob. Code, §1000), motions must also follow proper procedural pleading and notice requirements listed in the CCP, Cal. Rules of Court, and Probate Code, such as citation to authority/grounds for bringing the motion (CCP, §1010; *Keown v. Trudo* (1925) 71 Cal.App. 155, 156) and containing a prayer for relief. (See e.g. *Leek v. Cooper* (2011) 194 Cal.App.4th 399, 413; *Prue v. Brady Co./San Diego, Inc.* (2015) 242 Cal.App.4th 1367, 1376 ["a complaint must set forth the essential facts of the plaintiff's case with reasonable precision and with particularity sufficient to acquaint the defendant with the nature, source, and extent of the plaintiff's claim."].)

In this case, the "Status Report" that contained a vague motion does not satisfy any of the pleading or motion requirements in the Probate Code, CCP, or CRC. The filing does not cite to ANY authority (statute or case), does not clearly request affirmative relief, does not contain a prayer for relief, and appears to be attempting to cut off a known heir from Final Distribution of the proceeds of the estate, when no Petition for Final Distribution is before the Court for adjudication, all because the heir will not agree to be cut off or "settle" any potentially adverse claims. Judging from the language in Probate Code section 11604, no assignment by the heir would pass muster anyway, under the facts currently before the court.

Thus, any vague request for affirmative relief should be denied, and the Court should, at minimum, require a statutorily compliant Report of Status of Administration in order to determine whether to continue to allow the current personal representative to administer the estate.

[1] Every person who, having taken an oath that he or she will testify, declare, depose, or certify truly before any competent tribunal, officer, or person, in any of the cases in which the oath may by law of the State of California be administered, willfully and contrary to the oath, states as true any material matter which he or she knows to be false, and every person who testifies, declares, deposes, or certifies under penalty of perjury in any of the cases in which the testimony, declarations, depositions, or certification is permitted by law of the State of California under penalty of perjury and willfully states as true any material matter which he or she knows to be false, is guilty of perjury. (Pen. Code, §118(a).)

Appearances:

The court is open to the public for court business. The court is also conducting hearings via Zoom videoconference.

Meeting ID: 161 956 1423

Passcode: 137305

Judges

Judge Patricia Kelly

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